

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #04	CCRB Case #: 201310051	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 10/23/2013 12:18 AM	Location of Incident: § 87(2)(b) en route to and in the 75th Precinct stationhouse	18 Mo. SOL 4/23/2015	Precinct: 75
Date/Time CV Reported Thu, 10/24/2013 11:13 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/24/2013 11:13 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			075 PCT
3. POM Terrance Lloyd	27336	950760	075 PCT
4. POM Brian Costello	21884	950242	075 PCT
5. DTS James Shields	05032	927515	ESS 07
6. DTS Daniel Donaldson	04772	920223	ESS 07
7. SGT Anthony Gulotta	03094	919140	PBBN
8. POM Joseph Wallach	24933	953552	PBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Ardolino	03101	951507	PBBN
2. POM Charles Steiger	04299	939527	ESS 07
3. DTS Lenin Guerrero	07483	917726	ESS 07

Officer(s)	Allegation	Investigator Recommendation
A . SGT Anthony Gulotta	Abuse: Sgt. Anthony Gulotta authorized the removal of § 87(2)(b) and several individuals from § 87(2)(b), in Brooklyn.	A . Substantiated
B . DTS Daniel Donaldson	Discourtesy: At § 87(2)(b), in Brooklyn, Det. Daniel Donaldson spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . Officers	Force: At § 87(2)(b), in Brooklyn, officers pointed their guns at § 87(2)(b)	C . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
D . Officers	Discourtesy: At § 87(2)(b) in Brooklyn, and en route to the 75th Precinct stationhouse, officers spoke discourteously to § 87(2)(b) and § 87(2)(b)	D . Officer(s) Unidentified
E . POM Terrance Lloyd	Abuse: At the 75th Precinct stationhouse, PO Terrance Lloyd did not obtain medical treatment for § 87(2)(b) and § 87(2)(b)	E . Unsubstantiated
F . POM Brian Costello	Abuse: At the 75th Precinct stationhouse, PO Brian Costello did not obtain medical treatment for § 87(2)(b) and § 87(2)(b)	F . Unsubstantiated
G . An officer	Discourtesy: At the 75th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b) and § 87(2)(b)	G . Complainant Uncooperative
H . POM Joseph Wallach	Abuse: At § 87(2)(b), in Brooklyn, PO Joseph Wallach threatened to arrest § 87(2)(b)	H . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 24, 2013, § 87(2)(b) filed this complaint with the CCRB via telephone. On October 25, 2013, § 87(2)(b) and § 87(2)(b) independently filed duplicate complaints with the CCRB via telephone.

At approximately 12:18 a.m. on October 23, 2013, ESU officers acting under the instructions of Sgt. Anthony Gulotta of the 75th Precinct entered § 87(2)(b) in Brooklyn, and arrested eight individuals. The following allegations resulted:

- **Allegation A: Abuse of Authority – Sgt. Anthony Gulotta authorized the removal of § 87(2)(b) and several individuals from § 87(2)(b) in Brooklyn.**
§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **substantiated**.
- **Allegation B: Discourtesy – At § 87(2)(b) in Brooklyn, Det. Daniel Donaldson spoke discourteously to § 87(2)(b)**
§ 87(2)(g) Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.
- **Allegation C: Force – At § 87(2)(b) in Brooklyn, officers pointed their guns at § 87(2)(b)**
- **Allegation D: Discourtesy – At § 87(2)(b) and en route to the 75th Precinct stationhouse, officers spoke discourteously to § 87(2)(b) and § 87(2)(b)**
§ 87(2)(g) Therefore, it is recommended that **Allegations C and D** be closed as **officer(s) unidentified**.
- **Allegation E: Abuse of Authority - At the 75th Precinct stationhouse, PO Terrance Lloyd did not obtain medical treatment for § 87(2)(b) and § 87(2)(b)**
- **Allegation F: Abuse of Authority – At the 75th Precinct stationhouse, PO Brian Costello did not obtain medical treatment for § 87(2)(b) and § 87(2)(b)**
§ 87(2)(g) . Therefore, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.
- **Allegation G: Discourtesy – At the 75th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b) and § 87(2)(b)**
§ 87(2)(g) .
- **Allegation H: Abuse of Authority – At § 87(2)(b) in Brooklyn, PO Joseph Wallach threatened to arrest § 87(2)(b)**
§ 87(2)(g) Therefore, it is recommended that **Allegation H** be closed as **exonerated**.

- § 87(4-b) § 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a § 87(2)(b) Hispanic male with black hair and brown eyes.* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 9, 2014 (Encl. 6A-D).

At the time of the incident, § 87(2)(b) lived with his 16-year-old brother, § 87(2)(b) at § 87(2)(b) in Brooklyn. The § 87(2)(b) family had lived in the apartment for several years. The family kept a dog, described as a pit bull/beagle hybrid. § 87(2)(b) is a two-story residential building, with two apartments on each floor (§ 87(2)(b)). § 87(2)(b) was not aware of any individuals residing illegally in the building at the time. While he did not know of any criminal activity happening in the building at the time of the incident, he stated that in the past there had been numerous police raids in Apt. § 87(2)(b).

At approximately 12:15 a.m., one of the § 87(2)(b)'s upstairs neighbors, identified by the investigation as § 87(2)(b) knocked on their door. He informed § 87(2)(b) that there were a large number of police officers outside of the building. Concerned about the police presence, § 87(2)(b) went back into his apartment. Several minutes later, however, he heard a commotion in the hallway outside of his apartment. When he went to look through the peephole on the apartment door, he saw several uniformed officers wearing bulletproof vests, identified by the investigation as Det. Lenin Guerrero, PO Charles Steiger, Det. Daniel Donaldson and Det. James Shields of ESU Truck 7. These officers were equipped with ballistic shields and rifles. § 87(2)(b) returned to bed, and did not see what the officers did after he observed them through the peephole. The noise caused by the officers led the § 87(2)(b)'s dog to start barking.

A few minutes later § 87(2)(b) heard a knock on the apartment door. One of the officers shouted through the door, telling him to put his dog in the bathroom and then to come out with his hands up. § 87(2)(b) complied with their instructions, stowing his dog in the bathroom and opening the front door. As soon as he opened it, one of the officers, identified by the investigation as Det. Donaldson, grabbed § 87(2)(b) placed him against the wall, and handcuffed him. No further force was needed to restrain § 87(2)(b). After he was handcuffed, Det. Donaldson called § 87(2)(b) an "asshole." Det. Donaldson then frisked and searched § 87(2)(b)'s pockets. No other civilians were with him in the hall at that time. Det. Donaldson then walked § 87(2)(b) out of the building. As they walked out, § 87(2)(b) noticed the other ESU officers entering the apartment behind him.

Once outside, § 87(2)(b) was placed in a prisoner van. § 87(2)(b) was already in the van, in handcuffs. Two unidentified uniformed officers, PO1 and PO2, were sitting in the van as well. § 87(2)(b) described both of them as light-skinned males. He did not provide names or shield numbers for either officer. Shortly after § 87(2)(b) was loaded in, § 87(2)(b) and another male from upstairs, identified by the investigation as § 87(2)(b) were loaded into the van. § 87(2)(b) had not witnessed any of their arrests. The four prisoners were then driven to the 75th Precinct stationhouse by PO1 and PO2. As they drove, both officers called all four prisoners “assholes,” and told them that they “stunk.”

At the stationhouse, § 87(2)(b) discovered that several other individuals, identified by the investigation as § 87(2)(b) and § 87(2)(b) had been arrested as well. He did not know the circumstances of their arrests. Later that morning, the § 87(2)(b) brothers were taken to court for arraignment, and released from custody. At approximately 8:10 p.m., § 87(2)(b) attempted to return to § 87(2)(b). A group of officers, one of whom was identified by the investigation as PO Joseph Wallach of the 75th Precinct, stood outside of the building. When § 87(2)(b) tried to enter, PO Wallach told him that he would be arrested if he tried to enter the building.

The next night, on October 24, 2014, § 87(2)(b) went back to the building again, this time finding no police officers. When he went into Apt. § 87(2)(b) he found that his belongings had been scattered on the floor, and that his dog was missing.

Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) old at the time of the incident, is a § 87(2)(b) black male with black hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at § 87(2)(b) on Rikers Island on November 10, 2014 (Encl. 7A-D). On the evening of October 22, 2014, § 87(2)(b) was staying with his brother, § 87(2)(b) at § 87(2)(b) Apt. § 87(2)(b) in Brooklyn. § 87(2)(b) had been living in the building for at least two years by then. § 87(2)(b)

§ 87(2)(b) was going out that evening with his girlfriend, identified only as § 87(2)(b) § 87(2)(b) and § 87(2)(b) friend, § 87(2)(b) stayed at the apartment to care for § 87(2)(b) s § 87(2)(b) daughter, § 87(2)(b). At the time, there were five other individuals in the building: two Hispanic brothers on the bottom floor (identified by the investigation as § 87(2)(b) and § 87(2)(b) as well as three males in another second-floor apartment (identified by the investigation as § 87(2)(b) and § 87(2)(b).

At approximately 12:18 a.m. on October 23, 2014, either § 87(2)(b) or § 87(2)(b) knocked on the apartment door. He informed § 87(2)(b) that there were a large number of police officers outside of the building. When § 87(2)(b) looked for himself, he saw about thirty-five uniformed officers outside of the building. While § 87(2)(b) did not know of any reason why the police would want to enter § 87(2)(b) he knew that he would be in trouble if he was found there in violation of his parole.

§ 87(2)(b) left Apt. § 87(2)(b) and went to go hide in the building's basement. On his way down, he stopped at the first floor apartment to warn the § 87(2)(b) brothers about the police. When § 87(2)(b) entered the basement, another male followed him. He did not recall which of the building's occupants went with him. § 87(2)(b) entered a small room in the basement containing the boiler, taking position behind it. He did not recall where the other male went. Several minutes after hiding behind the boiler, § 87(2)(b) heard a loud commotion upstairs.

A few minutes later, two uniformed officers, identified by the investigation as PO Steiger and Det. Guerrero, entered the basement. The officers swept through the basement and found § 87(2)(b) and the individual. Both civilians were taken to the ground and placed in handcuffs. One of the officers § 87(2)(b) did not know which) told him, "Don't fucking move."

Once they were handcuffed, § 87(2)(b) and the male were walked out of the building and handed over to the uniformed officers outside. § 87(2)(b) noted that everybody in the building, save for § 87(2)(b) had been placed under arrested. § 87(2)(b) and § 87(2)(b) were all loaded into a prisoner van. A single uniformed officer, described only as a Hispanic male, was sitting in the van at the time. § 87(2)(b) had some kind of injury to his head, but § 87(2)(b) was unable to describe it in any detail.

While § 87(2)(b) sat in the van, § 87(2)(b) and § 87(2)(b) returned to § 87(2)(b) § 87(2)(b) angrily approached the officers outside of the building and asked what they were doing. He stood about thirty feet from the van. The van's door was open, so § 87(2)(b) was able to hear everything that he said. A uniformed male officer then approached § 87(2)(b) and pointed a gun in his face. § 87(2)(b) was only able to describe this officer as a male. From inside of the van, § 87(2)(b) shouted towards this officer, telling him to put his gun down. In response, the Hispanic officer inside of the van told him, "Shut the fuck up." § 87(2)(b) did not hear any other profanity in the van.

The officers outside of the van then pulled § 87(2)(b)'s arms behind his back, handcuffed him, and placed him in the van with the other prisoners. The prisoners were then driven to the 75th Precinct stationhouse and placed inside of the holding cells. § 87(2)(b) initially denied requesting medical attention after he was placed in the holding cells. Later, however, he stated that he asked several officers (whom he could not describe) for asthma medication and ibuprofen. None of the officers made any response to him. A little later, § 87(2)(b) asked several additional unidentified officers for treatment for the wound to his head. The officers all told him that if he went to the hospital, it would extend the amount of time he stayed in custody. § 87(2)(b) reiterated that he wanted treatment. None of the officers made any response to this. § 87(2)(b) was unaware of any of the prisoners, including himself and § 87(2)(b) receiving any kind of medical attention at any time.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a white male.

Telephone Statement

§ 87(2)(b) filed his initial complaint with the CCRB on October 25, 2014 (Encl. 5A-E). He declined to cooperate with the investigation, and did not provide a sworn statement (Encl. 23A-S).

At approximately 12:18 a.m. on October 23, 2014, § 87(2)(b) was asleep in his home at § 87(2)(b) Apt. § 87(2)(b). He was awoken by the sound of his dog barking. At the front door, he also heard the sound of a saw. Moments later, officers in tactical gear, one of whom was identified by the investigation as Det. James Shields, entered § 87(2)(b)'s room. § 87(2)(b) was then escorted out of the building. Outside, he noticed that there were approximately 40 police officers, including several ESU officers. § 87(2)(b) noticed his neighbor, § 87(2)(b) outside at the time. Det. Shields placed his gun to § 87(2)(b)'s head and told him, "Shut the fuck up or I'll shoot you." Both § 87(2)(b) and § 87(2)(b) were taken into custody and brought to the 75th Precinct stationhouse.

While in custody, § 87(2)(b) asked an officer, whom he identified as PO Terrence Lloyd, if he could go to the hospital for the injury to his head. § 87(2)(b) repeated this request numerous times over the course of several hours. Each time, PO Lloyd stated that his arresting officer would make the decision as to whether he would go to the hospital. Hours later, § 87(2)(b) made the same request to PO Brian Costello, whom he erroneously identified as his arresting officer. PO Costello, however, refused. At some point after this request, § 87(2)(b) also spoke to a male officer, whose name he gave as "Frey." He did not request medical attention from this officer. This officer, however, told both § 87(2)(b) and § 87(2)(b) "Suck my dick."

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a black male.*

Telephone Statement

§ 87(2)(b) filed his initial complaint with the CCRB on October 25, 2014. A partial telephone statement was taken before he disconnected the call (Encl. 5A-E). He ultimately did not cooperate with the investigation by completing his telephone statement or providing a sworn statement (Encl. 23A-S).

On the evening of October 22, 2014, § 87(2)(b) was away from his home at § 87(2)(b) Apt. § 87(2)(b) in Brooklyn. While out, § 87(2)(b) received a text message from § 87(2)(b) who was staying at his apartment, informing him that the police were trying to enter his apartment. § 87(2)(b) then called his neighbor, § 87(2)(b) who told him that the police were placing his daughter into an ambulance.

§ 87(2)(b) immediately returned home to find out what was happening. He arrived at approximately 12:18 a.m. on October 23, 2014. He found that a large number of officers had entered each apartment at § 87(2)(b) and arrested their occupants. Several officers, whom § 87(2)(b) did not describe, pointed their guns at him and told him, "Shut the fuck up." They then placed § 87(2)(b) under arrest.

Additional Civilian Statement: § 87(2)(b)

- § 87(2)(b) *is a male. At the time of the incident, he was the owner of § 87(2)(b) in Brooklyn.*

Telephone Statements

§ 87(2)(b) provided a telephone statement on May 23, 2014 (Encl. 8A). He then answered several follow-up questions on July 7, 2014 (Encl. 8B).

At the time of the incident, several individuals were squatting illegally at § 87(2)(b) in Brooklyn. Of all the people living there, only the § 87(2)(b) family were legal, rent-paying tenants. The other people living there were doing so without § 87(2)(b)'s consent. § 87(2)(b) did not provide names for any of these individuals, but stated that they had been living in the building for less than thirty days. Furthermore, several of these squatters had been involved in drug-related arrests at the building. Despite these arrests, § 87(2)(b) denied that the police took any efforts to specifically remove the squatters for trespassing on his property before October 22, 2013.

On the evening of October 22, 2013, § 87(2)(b) contacted the 75th Precinct and asked for the police to enter the building and remove the squatters. § 87(2)(b) sent an affidavit to the precinct giving the officers permission to enter the building. § 87(2)(b) did not have a copy of the affidavit at the time of his telephone statements, but recalled that in it, he specified that the § 87(2)(b) family were legal tenants, not squatters.

Attempts to Contact Civilians

Attempts were made to contact § 87(2)(b) and § 87(2)(b). § 87(2)(b) was contacted, but ultimately declined to provide a sworn statement. Contact could not be made with § 87(2)(b) or § 87(2)(b) (Encl. 23A-S).

NYPD Statement(s):

Subject Officer: PO MICHAEL ARDOLINO

- *PO Ardolino, § 87(2)(b) at the time of the incident, is a 5'7", 185-pound white male with brown hair and brown eyes.*
- *PO Ardolino was assigned as Sgt. Anthony Gulotta's operator. He was in uniform, and assigned to marked RMP #4525.*

Memo Book

At 10:38 p.m. on October 22, 2013, PO Ardolino spoke to § 87(2)(b) the owner of § 87(2)(b) who stated that several individuals had broken into the building. He provided a written affidavit granting the police permission to enter the location to address the matter. At 12:18 a.m. on October 23, 2013, eight individuals were arrested at the location. Sgt. Gulotta verified the arrests. At 12:30 a.m., PO Ardolino returned to the 75th Precinct stationhouse. At 6:30 a.m., PO Ardolino contacted ACS in regards to two of the prisoners, § 87(2)(b) and § 87(2)(b) (Encl. 10A-B).

Arrest Documentation

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

There is no force notation on any of the arrest reports.

CCRB Testimony

PO Ardolino was interviewed at the CCRB on September 5, 2014 (Encl. 10AA-AD). At approximately 10:38 p.m. on October 22, 2013, PO Ardolino spoke over the phone with § 87(2)(b) the owner of § 87(2)(b) in Brooklyn. PO Ardolino was familiar with the location, describing it as a two-story residential building with two apartments on each floor, as well as a basement. It had been the site of numerous drug- and weapons-related arrests in the past, and had a reputation in the neighborhood as a crack den. PO Ardolino himself had made an arrest at the location about ten days earlier when he recovered a loaded firearm. The perpetrator from that arrest was not involved in the incident that later occurred on October 23, 2013. PO Ardolino recalled that some of the individuals who would eventually be arrested on October 23, 2013 were present during this earlier arrest, but he did not recall who.

§ 87(2)(b) informed PO Ardolino that a group of individuals had broken into the building and were living there illegally, and had refused to leave when asked. § 87(2)(b) wanted the police to enter the building and arrest the trespassers. § 87(2)(b) did not give any indication how long the trespassers had been in the building. While PO Ardolino recalled that he had seen several individuals at § 87(2)(b) during his earlier arrest, he did not know how long they had been there. PO Ardolino asked § 87(2)(b) to provide a list of all of the people in the building, but § 87(2)(b) declined, stating that everybody in the house was there without permission and should be taken into custody. § 87(2)(b) then faxed an NYPD trespass affidavit to PO Ardolino. PO Ardolino was not aware of § 87(2)(b) providing any further affidavits or documentation beyond this. He provided a copy of the affidavit during his CCRB interview. PO Ardolino did not recall § 87(2)(b) indicating at any point that there were any legal tenants in § 87(2)(b) at the time.

After speaking to § 87(2)(b) PO Ardolino referred § 87(2)(b)'s information to his supervisor, Sgt. Gulotta. Neither PO Ardolino nor Sgt. Gulotta referred the matter to the City Marshals or the Sheriff's Office. When asked why no referral was made, PO Ardolino stated that he felt that the matter was an issue of criminal trespassing, and that there was no need to call in one of these agencies. Before entering the building to arrest the trespassers as per § 87(2)(b)'s request, PO Ardolino and Sgt. Gulotta drove by the location to see what was happening there. PO Ardolino observed several individuals entering and leaving the location, but was not able to estimate how many people he saw. At least one of the individuals had a pitbull with them at the time.

Based upon the presence of the pitbull and the history of weapons-related arrests made at the location, Sgt. Gulotta decided that the entry would likely be dangerous. As such, he requested for ESU officers to respond. Several ESU officers from Truck 7, identified by the investigation as Cpt. Daniel Miraglia, Det. Guerrero, Det. Shields, Det. Donaldson and PO Steiger, responded to the location. Numerous officers from the 75th Precinct also arrived to support ESU, but PO Ardolino did not recall who they were. The investigation was only able to identify one of these officers as PO Joseph Wallach. The precinct officers formed a perimeter around the building. PO Ardolino relayed § 87(2)(b)'s request to enter the building and arrest everybody inside to the ESU officers.

At approximately 12:18 a.m., the ESU officers entered § 87(2)(b) to arrest its occupants. PO Ardolino did not recall Cpt. Miraglia entering the building with the team. He did not recall if they had to force open the building's front door. Once the ESU officers were inside, PO Ardolino lost sight of them. As such, he did not know what actions they took while inside of the building, what interactions they had with the occupants, or what parts of the building they went into. He did not recall how long the ESU officers were inside of § 87(2)(b)

Eventually, the ESU officers exited the building with several individuals, identified as § 87(2)(b) and § 87(2)(b) in custody. PO Ardolino was not aware of any other adults inside of the building who had not been arrested. A young child, identified by the investigation as § 87(2)(b) was also removed, along with several pitbulls. The pitbulls had been sedated inside of the building by ESU, and were later taken to Animal Control for care. No dogs were injured or killed during the incident.

Once the occupants were removed from § 87(2)(b) one of the ESU officers informed PO Ardolino that he had seen a knife in the building. PO Ardolino did not recall where the knife had been seen, but did recall that he subsequently entered the building and recovered it. He did not recall if the knife was removed from a common area in the building or in an individual dwelling.

While PO Ardolino was in the building, one of the trespassers, identified by PO Ardolino as § 87(2)(b) approached the location from the outside. While § 87(2)(b) had been staying at § 87(2)(b) he had not been there when the officers first surrounded the location. PO Ardolino was later informed that § 87(2)(b) was arrested. He did not witness the arrest himself, and did not know who effected it. He did not know if any sort of force was used against § 87(2)(b)

After § 87(2)(b) was taken into custody, the eight prisoners, as well as § 87(2)(b) were transported to the 75th Precinct stationhouse. None of the prisoners displayed or complained of any injuries at that time. When they were processed at the front desk, the prisoners were asked if they required medical attention. All denied needing any care. PO Ardolino did not hear any of the prisoners request medical attention at any later time. After being processed at the desk, the prisoners were taken to the holding cells. PO Ardolino later contacted ACS to arrange for care for § 87(2)(b) Later that night, § 87(2)(b)'s mother arrived at the stationhouse and took custody of her. The mother had not been present during the incident.

PO Ardolino prepared arrest paperwork for each of the eight prisoners. He asked each prisoner if they could provide any documentation proving that they were legal residents of § 87(2)(b) None provided anything. PO Ardolino also asked if the knife he recovered belonged to any of them. None of them claimed ownership. § 87(2)(b), § 87(2)(a) 160.50. All eight prisoners were eventually taken to Central Booking. PO Ardolino did not go with them. He did not have any further interaction with any of the prisoners after they were transported.

PO Ardolino denied making or hearing any of the discourteous remarks that were alleged in relation to this incident.

Subject Officer: SGT. ANTHONY GULOTTA

- *Sgt. Gulotta, § 87(2)(b) at the time of the incident, is a 5'11", 220-pound white male with brown hair and brown eyes.*
- *Sgt. Gulotta was assigned as the Field Training supervisor. His operator was PO Michael Ardolino. Sgt. Gulotta was in uniform, and assigned to marked RMP #4525.*

Memo Book

At 9:30 p.m. on October 22, 2014, Sgt. Gulotta performed a directed patrol at § 87(2)(b). At 12:18 a.m. on October 23, 2014, PO Ardolino recorded eight arrests. At 2:15 a.m., Sgt. Gulotta resumed patrol. He noted at that time that § 87(2)(b) the owner of § 87(2)(b) had previously provided an affidavit to the 75th Precinct stating that no one had permission to dwell in the building (Encl. 11A-D).

CCRB Testimony

Sgt. Gulotta was interviewed at the CCRB on August 26, 2014 (Encl. 11E-H), § 87(2)(g)

Sgt. Gulotta confirmed that he was informed of § 87(2)(b)'s complaint regarding trespassers at § 87(2)(b) in Brooklyn, by PO Ardolino on the evening of October 22, 2013. His description of this complaint was consistent with PO Ardolino's. PO Ardolino also provided Sgt. Gulotta with a copy of § 87(2)(b)'s trespass affidavit as well. Like PO Ardolino, Sgt. Gulotta provided a copy of the affidavit during his CCRB interview. PO Ardolino made no mention to Sgt. Gulotta of any individuals who were living in the building legally. Sgt. Gulotta did not receive any further information about the alleged trespassers beyond what PO Ardolino told him, including how long any of the individuals have been in the building.

Based upon PO Ardolino's information, Sgt. Gulotta decided to enter § 87(2)(b) and arrest the individuals found inside for burglary. Based upon the building's history of weapons-related complaints, Sgt. Gulotta felt that the trespassers might be armed and dangerous. As such, he called for ESU to respond to the location and effect the entry. Numerous officers from the 75th Precinct, whom Sgt. Gulotta could not identify, traveled with them to help secure the building's exterior. They were accompanied by several ESU officers, identified by the investigation as Cpt. Miraglia, Det. Guerrero, Det. Donaldson, Det. Shields and PO Steiger. Sgt. Gulotta briefed them on the situation, explaining that he wanted them to enter the building and arrest everybody found within.

Det. Guerrero, Det. Donaldson, Det. Shields and PO Steiger entered § 87(2)(b) to effect the arrest while Cpt. Miraglia stayed outside with Sgt. Gulotta, PO Ardolino and the other precinct officers. Sgt. Gulotta did not observe what the ESU team did once inside of the building, and did not know where in the building they went.

After an unknown amount of time, the ESU officers began escorting people out of the house one-by-one, in handcuffs. Sgt. Gulotta did not see how any of these individuals were taken into custody. At least one dog was also removed from the location after being sedated by the ESU team. The dog was eventually transported to Animal Control. The ESU team also recovered a machete from somewhere in the house. Sgt. Gulotta did not know where it was found, or who it belonged to. § 87(2)(b)

§ 87(2)(b), Sgt. Gulotta explained that when contraband is found in a

common area of a residence, it is attributed to all of the residents unless a specific person claims ownership of it.

Sgt. Gulotta and PO Ardolino drove two of the prisoners, § 87(2)(b) and § 87(2)(b) to the 75th Precinct stationhouse in their RMP. The remaining prisoners were driven in a prisoner van. PO Ardolino was the arresting officer for all eight prisoners, and supervised the processing of their arrests. Sgt. Gulotta escorted the prisoners to the front desk with PO Ardolino, but did not have any further interaction with the prisoners afterwards. He was not aware of any of the prisoners being injured or requesting medical attention at any point.

Sgt. Gulotta did not know which officers later drove the prisoners to Central Booking. He did not hear any officer use profanity towards any of the prisoners at any point, and denied doing so himself. Sgt. Gulotta denied returning to § 87(2)(b) in the wake of the incident. He was not aware of any officers later attempting to prevent one of the prisoners, § 87(2)(b) from re-entering the building.

Subject Officer: DET. JAMES SHIELDS

- *Det. Shields, § 87(2)(b) at the time of the incident, is a 6', 225-pound white male with brown hair and green eyes.*
- *Det. Shields was in uniform and was assigned to ESU Truck 7 with Det. Daniel Donaldson.*

Memo Book

Det. Shields did not prepare a memo book entry regarding the incident (Encl. 12A-B).

CCRB Testimony

Det. Shields was interviewed at the CCRB on September 24, 2014 (Encl. 12C-F). On the evening of October 22, 2013, Det. Shields and several other ESU officers, including Det. Donaldson, Det. Guerrero and PO Steiger were summoned to § 87(2)(b) in Brooklyn, to assist officers from the 75th Precinct. He did not know the names of any of the precinct officers at the location, and did not recall any additional ESU personnel, including Cpt. Miraglia, being present. Det. Guerrero and PO Steiger, who had arrived at the scene earlier, briefed Det. Shields and Det. Donaldson on the situation, as explained to them by the precinct officers. They explained that the owner of § 87(2)(b) had asked officers to enter the building and arrest several squatters. The owner had supposedly provided a written affidavit attesting to this, but Det. Shields did not see it at any point. ESU had been contacted to effect the entry because the alleged squatters had at least one animal inside that posed a threat to the precinct officers. The ESU officers had been instructed to enter the location and arrest everybody inside, without exception. No additional information was given. Det. Shields and the other ESU officers retrieved gear from their equipment truck and entered the location.

As soon as the officers entered the building, an unidentified female and young child called down from the second floor, asking permission to leave. The ESU officers allowed the two to leave the building through the front door. Once they were gone, the team approached the door of the first floor apartment. One of the ESU officers, identified by the investigation as Det. Guerrero, knocked on the door. Two males, identified by the investigation as § 87(2)(b) and § 87(2)(b) opened the door a sliver and spoke to Det. Guerrero. Multiple dogs could be heard barking inside of the apartment. Det. Guerrero told the § 87(2)(b) brothers to place the dogs in the bathroom to

contain them. The brothers complied with the officers' instructions. They were then walked out of the building and handed over to the precinct officers outside. Det. Shields did not recall if the § 87(2)(b) brothers left the apartment voluntarily, or if they were pulled out by officers. He did not recall seeing any officer push them against a wall, or refer to either as an "asshole."

After the brothers were removed from the first-floor apartment, the ESU officers swept through to search it for any additional people. While they did not find anybody else, one of the dogs managed to get out of the bathroom. When the dog attempted to bite one of the officers, Det. Shields sedated it using his CO2 pistol.

Once the § 87(2)(b) family's apartment was cleared, the ESU team went up to the second floor. He only recalled approaching a single apartment on the second floor. The unit's front door had a large hole in it at eye level, approximately one foot in diameter. Through the hole, Det. Shields observed a male, identified by the investigation as § 87(2)(b) and a dog. The dog was barking loudly. Det. Shields did not recall if § 87(2)(b) was doing anything inside of his apartment at the time. Det. Guerrero ordered § 87(2)(b) to open the door. Det. Shields did not recall § 87(2)(b) responding to this command in any way.

With § 87(2)(b) uncooperative, the officers decided to open the door and take § 87(2)(b) into custody. Det. Shields first sedated the dog by shooting it with his CO2 pistol through the hole in the door. The officers then opened the door. The four officers then attempted to handcuff § 87(2)(b). He resisted them by holding both of his forearms against his chest with fists clenched. Det. Shields and the other officers were able to overcome this resistance by pulling his arms behind his back. No further force was used. No other individuals were found in the building after § 87(2)(b)'s arrest. Det. Shields did not recall entering any further areas of the house.

After § 87(2)(b) was arrested, he was taken outside and handed off to the precinct officers. The sedated dogs were also removed from the house. The dogs were placed in crates and later transported to Animal Control. No animals were injured or killed during the incident.

Det. Shields was not aware of any individuals beyond the § 87(2)(b) brothers and § 87(2)(b) being arrested. He was not aware of any objects, such as a knife or machete, being recovered inside of the house. Det. Shields denied hearing any officer use profanity against any individuals. He did not recall any officers pointing their weapons at any individuals.

After the individuals inside of § 87(2)(b) were removed, Det. Shields and the other ESU officers left the location. They did not participate in the subsequent arrest processing at the 75th Precinct stationhouse.

Subject Officer: DET. DANIEL DONALDSON

- *Det. Donaldson, § 87(2)(b) at the time of the incident, is a 5'7", 165-pound white male with gray-blond hair and blue eyes.*
- *Det. Donaldson worked the same tour and assignment as Det. James Shields.*

Memo Book

At 9:39 p.m. on October 22, 2013, Det. Donaldson traveled to § 87(2)(b) to search for several perpetrators (Encl. 13A-B).

CCRB Testimony

Det. Donaldson was interviewed at the CCRB on September 19, 2014 (Encl. 13C-F), § 87(2)(g)

When Det. Donaldson and Det. Shields arrived, they spoke directly with a supervisor from the 75th Precinct, identified by the investigation as Sgt. Gulotta. Sgt. Gulotta explained that the building's owner wished for several squatters to be removed from § 87(2)(b). Det. Donaldson's account of the owner's complaint was generally consistent with Det. Shields'. Cpt. Miraglia, Det. Guerrero and PO Steiger arrived at the location a short time after Det. Donaldson and Det. Shields. Sgt. Gulotta repeated the same information to them.

Det. Donaldson and Det. Shields were assigned to the second bunker team for the entry. Det. Donaldson held the shield, while Det. Shields carried an MP5 rifle. When the team went to enter the building's front door, they found that it was already open.

The entry team went directly to the § 87(2)(b) family's first-floor apartment upon entry. Either Det. Guerrero or PO Steiger spoke to the brothers at their door. Det. Donaldson, however, was not able to see either the brothers or the interior of the apartment, as Det. Guerrero and PO Steiger were standing in front of him. The brothers both complied when they were instructed to place any dogs in the bathroom. The ESU officers then entered the apartment to handcuff the brothers and check for any other individuals inside. Both brothers were escorted out of the apartment and handed off to the precinct officers. Det. Donaldson did not recall any officer referring to one of them as an "asshole." Shortly after the brothers were removed, a dog managed to escape from the bathroom. Det. Donaldson did not recall what the dog did once it was loose, or what actions the officers might have taken against it. He did not recall if any dogs were sedated during the incident, but denied that any dogs were injured or killed.

When the ESU team traveled up to the second floor, they found a single locked door. Det. Donaldson did not mention the door having a hole in it. The officers were able to hear somebody moving on the other side of the door. One of the officers ordered the individual inside to open the door and surrender. When there was no response, the officer carrying the entry tool forced the door open. Once inside, Det. Donaldson noticed a single male, identified by the investigation as § 87(2)(b). Det. Guerrero and PO Steiger moved directly to § 87(2)(b) while Det. Donaldson swept out into the room to check if anybody else was inside. While he heard what sounded like a struggle behind him as he searched the room, he did not see how § 87(2)(b) was taken into custody, or if § 87(2)(b) resisted in any way. It took Det. Donaldson only a few moments to find that nobody else was in the apartment. By the time he returned to the door, he saw that § 87(2)(b) was already in handcuffs.

Det. Donaldson was not aware of any other individuals being arrested inside of the building. He did not recall pointing his weapon at any individuals during the incident, or seeing other officers doing so. He did not recall having any interactions with any civilians outside of the building, and was not aware of any residents of § 87(2)(b) approaching the building after the entry was effected. He did not recall any officers using profanity towards any of the civilians, and denied doing so himself. He was not aware of any knives or machetes being recovered during the incident.

After the building was cleared and the prisoners were handed over to the precinct officers, Det. Donaldson left the location to resume patrol. He denied assisting in processing any of the arrests at the stationhouse. He did not have any further interactions with any of the prisoners.

Witness Officer: DET. LENIN GUERRERO

- Det. Guerrero, § 87(2)(b) at the time of the incident, is a 6'6", 240-pound Hispanic male with black hair and brown eyes.
- Det. Guerrero was in uniform and was assigned to ESU Truck 7 with PO Charles Steiger.

Memo Book

At 9:38 p.m. on October 22, 2013, Det. Guerrero conducted a search for several perpetrators (Encl. 14A-C).

CCRB Testimony

Det. Guerrero was interviewed at the CCRB on September 19, 2014 (Encl. 14D-G). § 87(2)(g)

Det. Guerrero was informed of the owner's complaint by Sgt. Gulotta, rather than other ESU officers. His account of the complaint was consistent with the other officers'. Det. Guerrero and the ESU officers were not informed of how long the squatters had been in the building. They were instructed to enter § 87(2)(b) and arrest everybody inside, without exception. Det. Guerrero and PO Steiger were assigned to the first bunker team. They entered the building and proceeded directly to the § 87(2)(b) brothers' first-floor apartment.

When § 87(2)(b) and § 87(2)(b) placed their dog in the bathroom and opened the door, they were ordered to lie down on the floor for handcuffing. Det. Guerrero did not recall any officer pushing either individual, or referring to either as an "asshole." Det. Guerrero stated that officers did not sweep through the § 87(2)(b) family's apartment until after they had gone upstairs and arrested § 87(2)(b). At that time, a dog attempted to bite Det. Guerrero. The dog was eventually restrained with a noose and transported to Animal Control. Det. Guerrero did not recall any dogs being sedated with a CO2 pistol.

Once inside of the second-floor room, Det. Guerrero took § 87(2)(b) to the ground, face-down, and pulled his arms behind his back. § 87(2)(b) resisted by holding his arms underneath his chest. Det. Guerrero did not use or witness the use of any additional force.

Det. Guerrero was not aware of any other individuals being arrested inside of the building. He did not recall pointing his weapon at any individuals during the incident, or seeing other officers doing so. He did not recall having any interactions with any civilians outside of the building, and was not aware of any residents of § 87(2)(b) approaching the building after the entry was effected. He did not recall any officers using profanity towards any of the civilians, and denied doing so himself. He was not aware of any knives or machetes being recovered during the incident.

Witness Officer: PO CHARLES STEIGER

- *PO Steiger, § 87(2)(b) at the time of the incident, is a 5'10", 220-pound white male with blond hair and blue eyes.*
- *On October 22, 2013 and October 23, 2013, PO Steiger worked the same tour and assignment as Det. Lenin Guerrero.*

Memo Book

At 9:38 p.m. on October 22, 2013, PO Steiger received a request for assistance with a perpetrator search at § 87(2)(b). At 1:30 a.m., 8 individuals were removed from the location, one of whom was a child. Three dogs were also removed (Encl. 15A-C).

Emergency Service Unit Documentation

PO Steiger prepared an ESU Report and an ESU Animal Control Report regarding the incident. At 9:38 p.m. on October 22, 2013, officers from ESU Truck 7 participated in the search of § 87(2)(b) in Brooklyn. Cpt. Daniel Miraglia was on-scene to supervise. A team of four officers entered the location and arrested seven individuals, three of whom resisted arrest. Three pitbulls, described as "vicious" upon entry, were sedated and removed to Animal Control (Encl. 15D-H).

CCRB Testimony

PO Steiger was interviewed at the CCRB on October 16, 2013 (Encl. 15I-L). § 87(2)(g)

PO Steiger and the other ESU officers were informed of the situation at § 87(2)(b) by Sgt. Gulotta, who informed him that two black male suspects had been chased into the building by unidentified patrol officers. When the officers had reached the building, they heard several dogs barking inside. Fearing that the dogs might be hostile, Sgt. Gulotta asked ESU to enter the location and retrieve the suspects. The ESU officers knocked on the building's front door several times before entering, but received no response.

Eventually, an unidentified officer managed to contact the building's owner, § 87(2)(b) over the phone. PO Steiger was not party to this conversation, and did not know who spoke to § 87(2)(b). After the call was made, Sgt. Gulotta told the ESU officers that § 87(2)(b) had stated that nobody was currently permitted to be in the building, and that everybody inside should be taken into custody, without exception.

When the § 87(2)(b) brothers opened their apartment door, PO Steiger and Det. Guerrero, the first bunker team, immediately entered to sweep the interior. While he knew that the brothers were subsequently removed from the building and arrested, he did not see which officer removed them. He did not see any officer push either brother against a wall, or refer to one of them as an "asshole." When PO Steiger entered the apartment, a pitbull ran towards him and tried to bite him. PO Steiger kicked the animal away and left the apartment, closing the door behind him. He did not know if the dog was injured.

After exiting the § 87(2)(b) family's apartment, PO Steiger saw that Det. Shields and Det. Donaldson had gone up to the second floor. PO Steiger stayed on the first floor. He did not know what, if any, actions Det. Shields and Det. Donaldson took on the second floor. After several minutes, they returned to the first floor. At that time, PO Steiger was not aware of any individuals being taken into custody on the second floor.

After re-forming on the first floor, the entry team descended into the building's basement. There, the officers found § 87(2)(b) and another unidentified individual. Both were taken to the ground and placed in handcuffs. PO Steiger and the other officers then walked the two prisoners out of the basement and handed them over to the precinct officers.

The ESU officers then returned to the § 87(2)(b) family's apartment, where two dogs were sedated using the CO2 pistol. PO Steiger himself did not witness any other individuals being arrested inside of the building. When he later exited the building, he was informed that three individuals had been arrested on the second floor while he and Det. Guerrero were still in the first-floor apartment. He had not been aware of the arrests before then. Additionally, a young child, identified by the investigation as § 87(2)(b) had been found in one of the upstairs apartments. PO Steiger was not aware of officers interacting with any civilians outside of § 87(2)(b) including any arrests.

PO Steiger did not recall pointing his weapon at any individuals during the incident, or seeing other officers doing so. He did not recall any officers using profanity towards any of the civilians, and denied doing so himself. He was not aware of any knives or machetes being recovered during the incident.

Subject Officer: PO JOSEPH WALLACH

- *PO Wallach, § 87(2)(b) at the time of the incident, is a 5'7", 200-pound white male with brown hair and brown eyes.*
- *PO Wallach worked from 7:30 p.m. on October 22, 2013 until 4:05 a.m. on October 23, 2013. He was assigned to Impact foot post #62. He then worked from 7:30 p.m. on October 23, 2013 until 4:05 a.m. on October 24, 2013. He was assigned to Impact post #59. On both tours, PO Wallach was in uniform, and worked on foot.*

Memo Book

At 9:30 p.m. on October 22, 2013, PO Wallach arrived at § 87(2)(b) to assist with the tactical extraction of several trespassers. At 12:30 a.m. on October 23, 2014, PO Michael Ardolino recorded several arrests. At 12:45 a.m., PO Wallach returned to the 75th Precinct stationhouse. At 4:05 a.m., he ended his first tour. His second tour began at 7:30 p.m. At 8:10 p.m., he prevented two Hispanic males who had been arrested the night before by PO Ardolino from entering § 87(2)(b). At 8:20 p.m., he warned both males not to enter the location (Encl. 17A-D).

CCRB Testimony

PO Wallach was interviewed at the CCRB on October 28, 2014 (Encl. 17E-H). PO Wallach responded to a call for assistance at § 87(2)(b) in Brooklyn, along with numerous unidentified officers from the 75th Precinct. PO Wallach was only told that officers were

attempting to arrest at least one individual inside of the building. He was not aware of the circumstances leading up to the entry, and did not participate in the entry himself.

After the prisoners were removed from the building, a civilian, identified by PO Wallach as § 87(2)(b) approached the location from the street. He was accompanied by an unidentified female. PO Wallach and several unidentified officers approached the pair. § 87(2)(b) appeared upset, and asked what was happening. An unidentified officer explained the situation to § 87(2)(b). The officer then placed § 87(2)(b) in handcuffs. PO Wallach did not know if § 87(2)(b) lived in the building, and did not know why he was arrested. The female with § 87(2)(b) was not arrested. No officer pointed their gun at § 87(2)(b) or told him, “Shut the fuck up.”

After § 87(2)(b) was arrested, several precinct officers entered § 87(2)(b). PO Wallach was not among these officers. PO Wallach was later informed that these officers recovered a machete somewhere in the building. He himself did not know who found it, or where it had been. PO Wallach instead traveled to the 75th Precinct stationhouse. While the prisoners were transported there at about the same time, PO Wallach did not recall if he rode with any of the prisoners, or if he went back separately. He did not know who transported the prisoners. He was not aware of any officer using any profanity at any point.

At the stationhouse, PO Wallach assisted PO Ardolino in preparing the prisoners’ arrest reports in the muster room. He was not directly involved in the processing of the prisoners themselves. He did not place them in the holding cells. PO Wallach did not observe any injuries to the prisoners, and did not recall any of them requesting medical attention at any point. He was also not familiar with any officers at the command named “Frey.” PO Wallach ended his tour at 4:05 a.m. on October 23, 2013. At that time, the prisoners were still in custody at the stationhouse.

PO Wallach started his next tour at 7:30 p.m. that night. He was assigned to foot post #62, near § 87(2)(b). One or two other Impact officers might have been on duty in the area as well, but PO Wallach did not recall who they were. At approximately 8:20 p.m., two males, identified by the investigation as § 87(2)(b) and § 87(2)(b) approached § 87(2)(b). PO Wallach recognized them as two of the prisoners from the night before. PO Wallach told them that as they had been arrested for burglary at the house the night before, they would be committing criminal trespassing if they tried to re-enter. Both males left after PO Wallach issued his warning.

Subject Officer: PO TERRANCE LLOYD

- *PO Lloyd, § 87(2)(b) at the time of the incident, is a 5’10”, 225-pound black male with black hair and brown eyes.*
- *On October 22, 2013, PO Lloyd worked from 3:00 p.m. until 11:35 p.m. He then worked overtime until 4:05 a.m. on October 23, 2013. He was assigned to sectors H and I, and worked with PO Oscar Ramos. PO Lloyd was in uniform, and to marked RMP #4232. His next tour was from 7:05 a.m. until 6:40 p.m. on October 23, 2013. He was assigned as the cell attendant at the 75th Precinct stationhouse, and worked alone. PO Lloyd was in uniform.*

Memo Book

PO Lloyd had no memo book entries regarding the incident. At 11:14 p.m. on October 22, 2013, he made an arrest at § 87(2)(b). He then went off-duty at 4:05 a.m. on October 23,

2013. During his second tour, he worked as the cell attendant from 7:05 a.m. until 2:30 p.m (Encl. 18A-C).

CCRB Testimony

PO Lloyd was interviewed at the CCRB on December 16, 2013 (Encl. 18D-F). PO Lloyd was not present at § 87(2)(b) at the time of the arrests on October 23, 2013. He and PO Ramos had made an unrelated arrest at 11:14 p.m. on October 22, 2013. After making the arrest, he transported his prisoner to the 75th Precinct stationhouse for processing. While he processed his arrest, PO Ardolino brought in several prisoners from § 87(2)(b). PO Lloyd did not interact with these prisoners, and did not help process their arrests.

PO Lloyd ended his first tour at 4:05 a.m. He began his second tour at 7:05 a.m. During the second tour, he worked as the stationhouse's cell attendant. At that time, PO Lloyd recognized one of the prisoners, § 87(2)(b) from previous interactions. § 87(2)(b) stated that he and several other prisoners, including his friend § 87(2)(b) had been arrested in their homes for burglary. He did not provide any further information regarding their arrests, including where they had been living, or for how long. PO Lloyd noticed that § 87(2)(b) had an abrasion somewhere on his head. § 87(2)(b) explained that he had suffered the injury during the earlier incident when he had resisted arrest. He did not specifically explain how the injury had been sustained. PO Lloyd did not recall any other prisoners displaying or complaining of injuries. None of the prisoners asked PO Lloyd or any other officer for medical attention.

The prisoners were taken to Central Booking in two groups, with one leaving several hours before the first. The second group, which included § 87(2)(b) were held longer because an unidentified detective wished to speak to them about an open case in the precinct. He did not know which detective spoke to these prisoners. Afterwards, this second group was sent to Central Booking as well. PO Lloyd did not recall which officers escorted the prisoners to Central Booking. He was unfamiliar with any officers at the command named "Frey." He was unaware of any officers using any kind of profanity while speaking to the prisoners.

Subject Officer: PO BRIAN COSTELLO

- *PO Costello, § 87(2)(b) at the time of the incident, is a 6', 195-pound white male with brown hair and blue eyes.*
- *On October 22, 2014, PO Costello ended his tour at 4:25 p.m. On October 23, 2014, he worked from 3:00 p.m. until 11:35 p.m. He was assigned to a prisoner transport van with an officer named "Frey." PO Costello was in uniform, and assigned to marked van #4954.*

Memo Book

At 3:05 p.m. on October 23, 2014, PO Costello was assigned to transport five males and one female to Brooklyn Central Booking. At 5:00 p.m., PO Costello and the prisoners left the 75th Precinct stationhouse. At 5:40 p.m., they arrived at Central Booking. At 9:21 p.m., PO Costello took a jacket from one of the prisoners, § 87(2)(b) in order to return it to the stationhouse. At 9:30 p.m., § 87(2)(b) signed a Medical Treatment of Prisoner Report stating that he refused medical attention (Encl. 19A-B).

CCRB Testimony

PO Costello was interviewed at the CCRB on November 25, 2014 (Encl. 19C-E). PO Costello was not present during the arrests made at § 87(2)(b) as he had gone off-duty at 4:25 p.m. on October 22, 2014. He did not begin his next tour until 3:05 p.m. on October 23, 2013.

When PO Costello reported for duty the next day, he was assigned to transport several prisoners who had been arrested during the incident at § 87(2)(b) to Central Booking. PO Costello identified two of the prisoners as § 87(2)(b) and § 87(2)(b). The investigation further identified the other prisoners from the incident as § 87(2)(b) and § 87(2)(b). PO Costello did not have any interactions with the prisoners before removing them from their cells to transport them.

PO Costello noted that § 87(2)(b) had an abrasion on the top of his head. § 87(2)(b) stated that he had sustained the injury about a week earlier, well before his arrest. Beyond the abrasion to § 87(2)(b)'s head, none of the prisoners displayed or complained of any injuries. None of the prisoners requested medical attention from PO Costello or any other officer.

PO Costello was assisted in transporting the prisoners by an officer identified only as "Frey." None of the prisoners gave the officers any difficulty while being transported. After leaving the command, PO Costello received a call on the radio, stating that § 87(2)(b) had accidentally taken a jacket belonging to a different prisoner. PO Costello briefly returned to the stationhouse to bring the jacket back, before continuing on to Central Booking.

At Central Booking, each of the prisoners was taken before an EMT for a brief examination. § 87(2)(b) however, refused his examination. PO Costello did not recall if § 87(2)(b) provided any explanation for his refusal. PO Costello documented this refusal by preparing a Medical Treatment of Prisoner Report, which § 87(2)(b) signed.

PO Costello did not recall any officer using any kind of profanity during his interactions with the prisoners.

NYPD Document(s)

Trespass Affidavit for § 87(2)(b)

§ 87(2)(b) signed a trespass affidavit to the 75th Precinct, asking them to patrol § 87(2)(b) Avenue and remove any trespassers. The date on which the affidavit was signed is illegible (Encl. 21N).

Medical Treatment of Prisoner Report

PO Costello stated that after he transported § 87(2)(b) to Central Booking, he declined to be examined by EMS, and refused medical attention. He further stated that he documented this refusal in a Medical Treatment of Prisoner Report, and that § 87(2)(b) signed the report to confirm the refusal. On November 12, 2014, a request was submitted to the Brooklyn Courts section to obtain the report. On November 17, 2014, however, the request was returned, indicating that since § 87(2)(b)'s arrest was sealed, the report could not be provided (Encl. 25P).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- None of the civilians involved in this incident filed a notice of claim with the City of New York as of June 26, 2014 with regard to the incident (Encl. 25J).

Civilian(s) Conviction History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Subject Officer(s) CCRB History

- There are no substantiated CCRB allegations against any of the subject officers. Their tenures are as follows: Sgt. Gulotta, seventeen years; Det. Shields, fourteen years; Det. Donaldson, seventeen years; PO Lloyd, three years; PO Costello, three years (Encl. 2A-F).
- This is the first CCRB complaint filed by [§ 87(2)(b)] or [§ 87(2)(b)] (Encl. 3A-D).

Conclusion

Identification of Subject Officer(s)

- It is undisputed that officers entered [§ 87(2)(b)] and removed its residents on the instructions of Sgt. Gulotta. [§ 87(2)(g)]
- [§ 87(2)(b)] alleged that after he was taken into custody by a group of ESU officers, the shortest officer called him an “asshole.” Det. Donaldson acknowledged that he was part of the ESU entry team that apprehended [§ 87(2)(b)]. Of the four officers, Det. Donaldson, at 5’7” tall, is the shortest. [§ 87(2)(g)]
- [§ 87(2)(b)] alleged that an officer, whom he could not describe, pointed a gun in his face. [§ 87(2)(b)] stated that several officers, whom he could not describe in detail, pointed their guns at [§ 87(2)(b)]. [§ 87(2)(b)] stated that only Det. Shields pointed his gun at [§ 87(2)(b)]. [§ 87(2)(b)] made no mention of any officers pointing their weapons at anybody outside of [§ 87(2)(b)]. Of the officers, only PO Wallach recalled [§ 87(2)(b)]’s arrest. He stated that a group of officers from the 75th Precinct effected the arrest. He denied, however, that any of them pointed their weapons.

Dozens of officers from the 75th Precinct, including several Impact officers, responded to the incident and surrounded § 87(2)(b). Specific units were not identified on the SPRINT (Encl. 21E-H). As such, it is likely that any individual approaching the building from the outside, as § 87(2)(b) did, would have been stopped by the precinct officers, rather than an ESU officer such as Det. Shields. § 87(2)(g)

§ 87(2)(g)

- Several civilians made discourtesy allegations during and immediately after the entry. § 87(2)(b) alleged that one of two ESU officers in the basement of § 87(2)(b) told him, “Don’t fucking move.” He was unable to tell which officer made the statement. § 87(2)(b) alleged that the two precinct officers inside of the prisoner van, whom he could not describe in any detail, referred to the prisoners inside as “assholes.” § 87(2)(b) also alleged that an officer in the van, described only as a Hispanic male, told him, “Shut the fuck up.” § 87(2)(b) and § 87(2)(b) both stated that the officer who pointed a gun at § 87(2)(b)’s head also told him, “Shut the fuck up.” All of the officers denied using or hearing profanity during the incident. None recalled which officers rode in the prisoner van.

Neither § 87(2)(b) nor § 87(2)(b) provided enough information about the officers who used profanity against them in the basement or in the van. As established earlier the officer or officers who pointed their guns at § 87(2)(b)’s head also could not be identified. § 87(2)(g)

- § 87(2)(b) and § 87(2)(b) both alleged that they asked several officers for medical attention while in custody at the 75th Precinct stationhouse. While § 87(2)(b) did not recall the names or descriptions of the officers he asked, § 87(2)(b) gave the names of the officers he spoke to as “Lloyd” and “Costello.” These names correspond to PO Terrence Lloyd and PO Brian Costello of the 75th Precinct. Both officers confirmed that they interacted with the prisoners at the stationhouse. § 87(2)(g)
- § 87(2)(b) alleged that an officer at the stationhouse told him and § 87(2)(b) “Suck my dick.” He identified this officer by name as “Frey.” While the command log confirmed that an officer by this name assisted PO Costello in transporting the prisoners (Encl. 21BL-BS), there is no officer by that name listed on the roll call (Encl. 21Z-BI). None of the officers interviewed were familiar with an officer named “Frey.” A review of the CTS database shows that there are several officers by that name, but none are assigned to the 75th Precinct. Absent additional testimony or documentation, the investigation could not identify the officer who allegedly spoke discourteously to § 87(2)(b) and § 87(2)(b). § 87(2)(g)

Allegation Not Pleaded

- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – Sgt. Anthony Gulotta authorized the removal of § 87(2)(b) and several individuals from § 87(2)(b) in Brooklyn.

It is undisputed that Sgt. Gulotta ordered the ESU officers to remove the residents of § 87(2)(b) § 87(2)(b). Sgt. Gulotta made this decision based solely upon information provided to him by PO Ardolino, who had been in contact with the building's owner, § 87(2)(b). Sgt. Gulotta's and PO Ardolino's accounts of § 87(2)(b)'s complaints were consistent. Both officers stated that § 87(2)(b) had complained that several individuals had illegally entered § 87(2)(b) and taken up residence there. § 87(2)(b) gave no indication how long these individuals had been living in the building. Both officers stated that § 87(2)(b) claimed that everybody in the building, without exception, was an illegal resident, and needed to be removed. § 87(2)(b) also provided the officers with a trespass affidavit for the building.

While the two officers drove by § 87(2)(b) before the removal was effected, neither officer took any efforts to verify any aspect of § 87(2)(b)'s complaint, including how long the residents had been living at § 87(2)(b). No effort was made to contact the City Marshals or the Sheriff's Office, the city agencies that are normally involved in evictions. Neither officer mentioned any criminal activity at § 87(2)(b) beyond § 87(2)(b)'s complaint.

§ 87(2)(b) confirmed that he filed a complaint regarding the residents of § 87(2)(b). § 87(2)(b) stated that the illegal residents had been in the building for less than thirty days. He also alleged, however, that he specifically told the police that the § 87(2)(b) family was paying rent, and should not be removed. He further alleged that he included this information in a written affidavit. § 87(2)(b) was unable to provide a copy of this written affidavit to the investigation. § 87(2)(b) stated that he and his family had been living in the building for several years, and were up to date on their rent. While § 87(2)(b) and § 87(2)(b) did not indicate how long they had been living at § 87(2)(b), § 87(2)(b) who was staying temporarily with § 87(2)(b) indicated that his brother had been living there for several years as well.

§26-251 of the New York City Administrative Code states that any attempt to forcibly remove an individual from a dwelling that they had resided in for more than thirty days, absent a warrant of eviction or other court order, shall be considered an illegal eviction (Encl. 1A). NYPD Patrol Guide procedure 214-13 states that the authority to break and enter a location pursuant to a purely civil process such as an eviction is granted solely to the City Marshals or the Sheriff's Office. Even under circumstances under which a warrant of eviction or other civil order has been granted, the actual execution of the order is to be handled by the marshal or sheriff, not the police. Police officers are empowered only to maintain order and ensure personal safety during the eviction (Encl. 1B-C).

§ 87(2)(g)

In § 87(2)(b)'s account, he drew a clear distinction between the § 87(2)(b) family, who were legal tenants, and everybody else in the building, who had been residing at the location illegally for thirty days. § 87(2)(g)

In the officers' account, § 87(2)(b) issued a blanket statement identifying all of the residents as being trespassers. § 87(2)(g) § 87(2)(b) did not indicate how long any of the residents had been living at the location. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B: Discourtesy – At § 87(2)(b) in Brooklyn, Det. Daniel Donaldson spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that as Det. Donaldson removed him from § 87(2)(b) he called him an “asshole.” All of the officers interviewed denied either using profanity, or hearing another officer use profanity during the incident. § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C: Force – At § 87(2)(b) in Brooklyn, officers pointed their guns at § 87(2)(b)

Allegation D: Discourtesy – At § 87(2)(b) in Brooklyn, and en route to the 75th Precinct stationhouse, officers spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)
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Allegation E: Abuse of Authority - At the 75th Precinct stationhouse, PO Terrance Lloyd did not obtain medical treatment for § 87(2)(b) and § 87(2)(b)

Allegation F: Abuse of Authority – At the 75th Precinct stationhouse, PO Brian Costello did not obtain medical treatment for § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both alleged that while at the 75th Precinct stationhouse, they requested medical attention from PO Lloyd and PO Costello. PO Lloyd denied that § 87(2)(b) or any of the other prisoners complained of any injuries. While he stated that § 87(2)(b) had an injury to his head, and that § 87(2)(b) told him that the injury was sustained during his arrest, he did not request treatment for it at any time. He was not aware of any other prisoners suffering injuries. PO Costello also observed the injury to § 87(2)(b)'s head, but stated that § 87(2)(b) attributed it to an earlier incident, several days before his arrest. He was also unaware of any injuries to any other prisoners. PO Costello further stated that § 87(2)(b) refused medical treatment at Central Booking, and signed a Medical Treatment of Prisoner Report to document the refusal. The report could not be obtained by the investigation, as § 87(2)(b)'s arrest was subsequently sealed.

§ 87(2)(g)
Therefore, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.

Allegation G: Discourtesy – At the 75th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that at the stationhouse, an officer told § 87(2)(b) and him, “Suck my dick.” None of the other civilians mentioned either of these allegations. § 87(2)(g) it is recommended that **Allegations G** be closed as **complainant uncooperative**.

Allegation H: Abuse of Authority – At § 87(2)(b) in Brooklyn, PO Joseph Wallach threatened to arrest § 87(2)(b)

It is undisputed that PO Wallach threatened to arrest § 87(2)(b) when he attempted to return to § 87(2)(b) on the evening of October 23, 2013. PO Wallach stated that since

§ 87(2)(b) had been arrested the night before for burglary at the location, he was not permitted to return there. He explained that if § 87(2)(b) had re-entered the building, it would constitute criminal trespassing.

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted] Therefore, it is recommended that **Allegation H** be closed as **exonerated**.

§ 87(4-b), § 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted].

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date